



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ

LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan

FILE COPY

1st Endorsement
November 21, 2025

SR306 - 11242025 - 214

OFFICE of the SANGGUNANG BAYAN
LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon

RELEASED

BY: PINKYE E. DESTURA

DATE: 11/24/25 TIME: 1:28 pm

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 238-2025 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE DEPARTMENT OF AGRICULTURE REGIONAL OFFICE NO. V (DA RFO V) REPRESENTED BY ITS REGIONAL DIRECTOR, RODEL P. TORNILLA, FOR THE IMPLEMENTATION OF THE LIVESTOCK AND POULTRY PROGRAM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.


BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:

Ms. Melanie Sol
Municipal Agriculturist

OFFICE OF THE MAYOR
LGU PRIETO DIAZ, SORSOGON

RECEIVED

By: _____

Date: 11/24/25

Time: 1:35



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
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FILE COPY

Office of the Secretary to the Sangguniang Bayan

1st Endorsement
November 21, 2025

SBAC - 11/24/2025 - 2/13

OFFICE of the SANGGUNIANg BAYAN
LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon

RELEASED

BY: PINKY E. DESTURA

DATE: 11/24/25 TIME: 1:26 PM

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 238-2025 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE DEPARTMENT OF AGRICULTURE REGIONAL OFFICE NO. V (DA RFO V) REPRESENTED BY ITS REGIONAL DIRECTOR, RODEL P. TORNILLA, FOR THE IMPLEMENTATION OF THE LIVESTOCK AND POULTRY PROGRAM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.


BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:

Ms. Melanie Sol
Municipal Agriculturist

OFFICE OF THE MAYOR
LGU PRIETO DIAZ, SORSOGON

RECEIVED

By: _____

Date: 11/24/25

Time: 1:25

11/24/25
1:25 PM
RECEIVED
DMAS



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON OCTOBER 27, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Ryand D. Diño	Sangguniang Bayan Member
Hon. Vicente B. Bayoca	Sangguniang Bayan Member
Hon. Bienvenido D. Ayo, Jr.	Sangguniang Bayan Member
Hon. Joseph H. Yap, Jr.	Sangguniang Bayan Member
Hon. Alexander D. Destura	Sangguniang Bayan Member
Hon. Jo Madel D. Domalaon	Sangguniang Bayan Member
Hon. Juan D. Ebid	Sangguniang Bayan Member
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres. /S. B. Member

ABSENT:

Hon. Lilia D. Oliveres	S. B. Member – on leave
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RESOLUTION NO. 238-2025

Introduced by Hon. Alexander Destura

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE DEPARTMENT OF AGRICULTURE REGIONAL OFFICE NO. V (DA RFO V) REPRESENTED BY ITS REGIONAL DIRECTOR, RODEL P. TORNILLA, FOR THE IMPLEMENTATION OF THE LIVESTOCK AND POULTRY PROGRAM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the Sangguniang Bayan is in receipt of the said MOA, duly endorsed by the Municipal Mayor, Hon. Romeo Domasian;

WHEREAS, this collegial body is cognizant that the DA through its regional offices is implementing the Livestock and Poultry Program in pursuit of poverty alleviation of agricultural sectors and achieving food security;

WHEREAS, one of the components of the said program is the provision of one (1) unit incubator with hatchery (252-setter capacity) to qualified or registered farmers' cooperatives or associations, LGUs or SUCs;

WHEREAS, the DA RFO V shall, among others, procure and deliver one (1) unit incubator with hatchery (252-setter capacity) and provide technical assistance to operationalize the said agricultural machinery;

WHEREAS, the MLGU of Prieto Diaz shall, among others, have at least 2 operators capable of operating and maintaining the agricultural machinery and shall shoulder the working capital for its operation and maintenance cost;

WHEREAS, on motion of Hon. Ryand Diño, duly seconded by Hon. Antonio Emano, Jr.;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo Domasian, to enter into a Memorandum Of Agreement (MOA) with the Department of Agriculture Regional Office No. V (DA RFO V) represented by its Regional Director, Rodel P. Tornilla, for the implementation of the Livestock and Poultry Program in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo Domasian, Municipal Mayor; copy furnished Ms. Melanie Sol, Municipal Agriculturist; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:



Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT
(On Livestock Production and Processing)
INCUBATOR WITH HATCHER (252-SETTER CAPACITY)
LIVESTOCK AND POULTRY PROGRAM

KNOW ALL MEN BY THESE PRESENTS:

This MEMORANDUM OF AGREEMENT entered into by and between:

The **DEPARTMENT OF AGRICULTURE - REGIONAL FIELD OFFICE NO. 5**, a line agency of the government with office address at San Agustin, Pili, Camarines Sur, herein represented by its Regional Executive Director, **RODEL P. TORNILLA, RAgr, MABE** hereinafter referred to as "**DA-RFO 5**";

-and-

The **LOCAL GOVERNMENT UNIT OF THE MUNICIPALITY OF PRIETO DIAZ**, a local government unit duly organized and existing under the laws of the Republic of the Philippines, with official address at Perlas, Prieto Diaz, Sorsogon, represented by its Municipal Mayor, **HONORABLE ROMEO D. DOMASIAN**, of legal age, Filipino, and with office address at Perlas, Prieto Diaz, Sorsogon by virtue of **Sangguniang Bayan Resolution No. _____**, Series of _____, a copy of which is attached as Annex "A" and made an integral part of this Agreement, hereinafter referred to as the "**LGU**".

WITNESSETH

WHEREAS, the Department of Agriculture, thru its Regional Field Offices is implementing the Livestock and Poultry Program in pursuit of poverty alleviation of agricultural sectors and achieving food security as envisioned under RA 8435, otherwise known as Agriculture and Fisheries Modernization Act of 1995 (AFMA);

WHEREAS, one of the components of the Livestock and Poultry Program is the provision of one (1) unit Incubator with Hatcher (252-setter capacity) to qualified registered or accredited Farmers' Cooperatives and Associations, Local Government Units (LGUs), and State Universities and Colleges (SUCs);

WHEREAS, said program component is aimed to achieve high hatchability of healthy chicks and reduce egg spoilage, and aimed to increase income of local poultry farmers;

WHEREAS, said program component is aimed to enhance poultry production activities of poultry farmers thereby reducing the chances of the hen damaging the eggs through pecking and reduce the pest and parasites to the chicks;

RODEL P. TORNILLA, RAgr, MABE
Regional Executive Director,
DA-RFO 5

HON. ROMEO D. DOMASIAN
Municipal Mayor,
LGU-Municipality of Prieto
Diaz

MARIANITO A. TESORERO, RAgr, MSAS
Regional Livestock and Poultry
Program Coordinator

MAO / MABE

PA / PABEO

RAFC

PAFC

PAFC

WHEREAS, the LGU is proposing and signifies its intention to avail the Incubator, and is indeed a qualified recipient of the equipment to be used in immediate poultry production to meet better market price;

NOW, THEREFORE, for and in consideration of the foregoing premises and their mutual covenants hereinafter set forth, the parties hereto have agreed to enter into this Memorandum of Agreement under the following terms and conditions:

SECTION I GENERAL CONDITIONS

- 1.1 The LGU should be LIVESTOCK AND POULTRY PROGRAM recipient of related livelihood project.
- 1.2 The one (1) unit Incubator with Hatcher (252-setter capacity) of the DA shall be treated as "GRANT" to the LGU.
- 1.3 The GRANT is a property of both the DA-RFO 5 and the LGU and cannot be mortgaged or used as collateral for any loan application by any or both of the agreeing parties.

SECTION II. OBLIGATION OF THE PARTIES

- 2.1 It shall be the obligation of the DA-RFO 5 to:
 - 2.1.1 Procure and deliver the agricultural machinery: **one (1) unit Incubator with Hatcher (252-setter capacity);**
 - 2.1.2 Conduct validation on the eligibility and capability of the recipient to operate and sustain the machinery;
 - 2.1.3 Conduct regular monitoring and evaluation to ascertain the progress of operation of the machinery;
 - 2.1.4 Provide assistance if necessary to operationalize the machinery;
 - 2.1.5 In coordination with the supplier and other government agencies, train the LGU's staff to operate and maintain the machinery;
 - 2.1.6 Monitor the utilization, operation, and maintenance of the machinery;
 - 2.1.7 Have the right to intervene and institute corrective measures for the purpose of ensuring the objectives of the program; and
 - 2.1.8 Recall the machinery if the recipient failed to use the project according to its intended purpose and/or let the project deteriorate without being utilized for more than one year from the turn-over.

RODEL P. TORNILLA, RAGR, MABE
Regional Executive Director,
DA-RFO 5

HON. ROMEO J. MASIAN
Municipal Mayor,
LGU Municipality of Prieto
Diaz

MARIANO A. TESORERO, RAGR, MSAS
Regional Livestock and Poultry
Program Coordinator

MAO / MABE

PA / PABEO

RAFC

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MAFC

2.2 It shall be the obligation of the LGU to:

- 2.2.1 Have no unliquidated funds from DA;
- 2.2.2 Provide utilization proposal and policy for the use of the machinery requested, its benefits for its members and the locality. The policy should also detail the maintenance plan for the machinery to ensure sustainability and continued functionality, the operating scheme, rates and strategies most appropriate on the use of the machinery;
- 2.2.3 Currently engaged in agricultural production/post-harvest activities / provided educational learning relative to agricultural production or post-harvest activities.
- 2.2.4 Have no machinery(s) from DA that is unutilized/underutilized;
- 2.2.5 Be willing to secure all legal documentations, and shall have full accountability for any problem or issue arising to it;
- 2.2.6 Have at least two (2) operators capable of operating and maintaining the agricultural machinery/equipment. The operator must have undergone training related to the machinery/equipment requested; and be willing to undergo further training course(s). In case the operator resigned or is unable to fulfill their duties, the LGU shall immediately initiate the process of necessary replacement. The replacement operator must meet the same qualifications as specified earlier.
- 2.2.7 With existing and/or willing to hire Agricultural and Biosystems Engineer (ABE);
- 2.2.8 Shoulder the working capital for the operation and maintenance cost of the machinery/equipment;
- 2.2.9 Maximize the utilization of the machinery/equipment in accordance with its intended purpose;
- 2.2.10 Provide machinery/equipment shed/shelter with suitable access road leading to the service area. Keep and maintain records of the transactions accessible to the monitoring and evaluation team of the project;
- 2.2.11 Be responsible for the security of the agricultural project; and
- 2.2.12 Allow the "DA-RFO 5" to recall agricultural machinery/equipment if non-operational, under-utilized, or unutilized and/or in case of violation of the provisions of MOA. Thus, without valid justification the recipient will be blacklisted from the DA AMEFIP for 3 years.

SECTION III ARBITRATION

Any dispute arising from this contract shall be submitted to arbitration in accordance with the provisions of RA 876 or other modes of speedy and amicable dispute resolution prior to court action.

RODEL P. TORNILLA, RAGr. MABE
Regional Executive Director,
DA RFO 5

HON. ROMEO D. DOMASIAN
Municipal Mayor,
LGU-Municipality of Prieto
Diaz

MARIANITO A. TESORERO, RAGr. MSAS
Regional Livestock and Poultry
Program Coordinator

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**SECTION IV
AMENDMENTS**

The amendments, modifications or alterations to this Agreement shall be valid or binding for either party and shall be expressed in writing and executed with the same formality as this Agreement.

**SECTION IV
EFFECTIVITY**

This Agreement takes effect immediately on the date of signing by both parties.

IN WITNESS THEREOF, the parties through their duly authorized representatives hereunto affix their signature this ____ day of _____, 2025 at _____.

DEPARTMENT OF AGRICULTURE
Regional Field Office 5
San Agustin, Pili, Camarines Sur

**LOCAL GOVERNMENT UNIT OF THE
MUNICIPALITY OF PRIETO DIAZ**
Gogon, Prieto Diaz, Sorsogon

By:

By:

RODEL P. TORNILLA, RAgr, MABE
Regional Executive Director

HON. ROMEO D. DOMASIAN
Municipal Mayor

Signed in the Presence of:

MARIANITO A. TESORERO, RAgr, MSAS
Regional Livestock and Poultry Program
Coordinator

RAFC Chairman

MAO/MABE

PAO/PABEO

MAFC

PAFC

ACKNOWLEDGEMENT

Republic of the Philippines)
Municipality of _____)s.s.

BEFORE ME, this ____ day of _____, 2025 personally appeared the following:

Name	ID and Number	Issued/ Valid Until
RODEL P. TORNILLA, RAgr, MABE	DA-RFO-5 Employee ID No. 05-3260	
HON. ROMEO D. DOMASIAN		

Whom I identify through the above - mentioned identification documents to be the same persons described in the foregoing instrument. They further acknowledged to me that they voluntarily affixed their respective signatures on this instrument for the purpose stated therein. Furthermore, they declared to me that they have executed the foregoing instruments as their free and voluntary act and deed and of the instrumentality of Government herein represented and that they have the authority to sign for and in behalf of their respective principals.

This instrument refers to a Memorandum of Agreement and acknowledged that the same is their voluntary act and deed for the agencies they represent, consisting of 5 pages including this page on which the acknowledgement is written, has been signed on each and every page thereof by parties and their witnesses.

WITNESS MY HAND AND SEAL this ____ day of _____, 2025.

NOTARY PUBLIC

Doc No. _____
Page No. _____
Book No. _____
Series of _____